

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 17-09**

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**FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC and FCA Italy S.p.A.,**

**v.**

**WALLENIS WILHELMSSEN LOGISTICS AS, WALLENIS WILHELMSSEN LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC., NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC., MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC., KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC., COMPAÑÍA SUD AMERICANA DE VAPORES, AND HOËGH AUTOLINERS AS,**

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**COMPLAINANTS'**

**MOTION TO EXTEND THE AUGUST 13, 2018 SCHEDULING ORDER**

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Pursuant to Commission Rule 69, 46 C.F.R. § 502.69, Complainants Fiat Chrysler Automobiles NV, FCA US LLC and FCA Italy S.p.A. ("Complainants") hereby respectfully submit this motion to extend the August 13, 2018 Scheduling Order. In support of its motion, Complainants state as follows:

1. A scheduling order was entered on August 13, 2018 setting out dates agreed upon by the parties in this case. That schedule provides as follows:

|                  |                                                                  |
|------------------|------------------------------------------------------------------|
| October 9, 2018  | Respondents file answer, affirmative defenses, etc. to complaint |
| October 23, 2018 | Exchange of initial disclosures                                  |
| November 2, 2018 | Service of written discovery demands                             |

|                   |                                                                                                                                  |
|-------------------|----------------------------------------------------------------------------------------------------------------------------------|
| February 15, 2019 | Complainants' expert witness report(s) to be served                                                                              |
| March 4, 2019     | Depositions of all fact witnesses and fact discovery completed                                                                   |
| April 2, 2019     | Respondents' expert witness report(s) to be served                                                                               |
| May 13, 2019      | Deposition of expert witnesses completed                                                                                         |
| June 12, 2019     | Complainants file brief, proposed findings of fact, and appendix                                                                 |
| July 12, 2019     | Respondents file opposition brief, proposed findings of fact, appendix, and responses to Complainants' proposed findings of fact |
| July 29, 2019     | Complainants file reply brief and responses to Respondents' proposed findings of fact                                            |

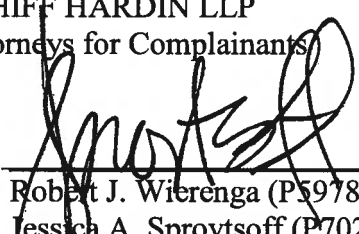
2. The parties have exchanged written discovery and in the process of exchanging document productions. Complainants have also served deposition notices on certain of the defendants, although those depositions have not yet taken place.
3. At the same time, Complainants been in active settlement talks with several of the Respondents. The parties have engaged the assistance of the Federal Maritime Commission's mediation office for certain of these negotiations.
4. Several of the parties, including Complainants, have indicated that settlement talks could be inhibited by the parties being forced to spend significant time and money on discovery.
5. Complainants therefore believe that settlement efforts will be assisted by the parties being given additional time to explore settlement before the expiration of the discovery deadline, currently scheduled for March 4, 2019. In order to allow those talks to continue, and to try

to resolve its claims without the intervention of the Commission, Complainants request that the dates in the August 13, 2018 scheduling order be extended by six months.

6. Extending the case schedule in the requested manner should reduce the costs incurred by both Complainants and Respondents, and allow for the most efficient resolution of this matter.
7. Despite the fact that at least some of the Respondents agree that it is inefficient to expend resources on discovery while engaging in settlement negotiations and that Counsel for the WWL Respondents acknowledged that the parties agreeing to extend the deadline to respond to written discovery "may well have a cascading effect on the remainder of the schedule," Respondents have not consented to the relief requested herein.

WHEREFORE, Complainants are engaged in settlement negotiations with several of the Respondents, Complainants respectfully requests that the dates in the August 13, 2018 Scheduling Order be extended by six months.

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Dated: February 20, 2019

### **CERTIFICATE OF SERVICE**

I hereby certify that, on February 20, 2019, I caused to be served the foregoing document via email and additionally, the original and five copies have been sent to Secretary, Federal Maritime Commission via FedEx overnight. The foregoing document has been sent via email and U.S. Mail to the attorneys for Respondents identified in this matter and listed below.

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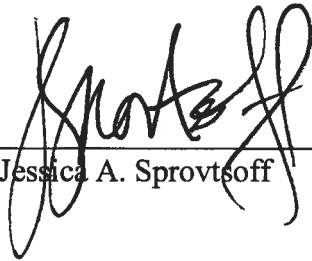
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